

Court No. - 34

Case :- WRIT - C No. - 33119 of 2014

Petitioner :- Arup Kumar Mitra

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Subhash Gosain

Counsel for Respondent :- C.S.C.

Hon'ble Sudhir Agarwal,J.

Hon'ble Suneet Kumar,J.

We find that impugned order passed by respondent no. 3 is prima facie illegal and also contemptuous in nature.

Let respondent no. 3, Executive Engineer appear in person before this Court after Lunch.

Order Date :- 24.6.2014

kkm

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Hon'ble Sudhir Agarwal,J.

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In view of our order passed before Lunch, Sri Anil Arora, holding office of Executive Engineer, Electricity Urban Distribution Division, Rambagh, Allahabad has appeared and stated that impugned order dated 05.05.2014 has not been passed by him but by Sri N.K. Singh who has now been transferred to District Pratapgarh and the aforesaid incumbent (Sri Arora) has joined on 19.06.2014.

It is contended that the final assessment order dated 18.09.2013 passed by the Executive Engineer , Electricity Urban Distribution Division, Rambagh, 1 Kamla Nehru Road, Allahabad was quashed by this Court in Writ Petition No. 61403 of 2013, decided on 13.11.2013 and this Court while setting aside the said order passed the following order:-

“Considering the facts of the case, we are of the view that the petitioner's objection be considered and the assessment against the petitioner finalising a fresh, the final assessment dated 18.09.2013 is set aside with a liberty to the Executive Engineer to pass a fresh order regarding finalising of assessment after considering the objection of the petitioner. The said decision shall be taken within a period of four weeks.”

However, the Executive Engineer, in complete but utter disobedience of this Court's order and in deliberate violation thereof instead of passing a fresh order of assessment, has kept said order still alive. The impugned order dated 05.05.2014 states that since a final assessment had already been made on 18.09.2013 there is nothing in the petitioner's representation which needs consideration.

It is contended that besides the fact the impugned order is illegal and in complete defiance of Court's order dated 13.11.2013, it is also contemptuous. We find substance in the submission.

Let Sri N.K. Singh, Executive Engineer, Electricity Urban Distribution Division, Rambagh, Allahabad who has now been transferred and posted at Pratapgarh appear in person before this Court on 27.06.2014.

Put up this matter on 27.06.2014.

In view of the above, until further orders, recovery pursuant to impugned order shall remain stayed.

A copy of this order be made available to Sri R.S. Umrao, today itself, for information to the concerned officer and compliance.

Sri Anil Arora is also directed to communicate this order to Sri N.K. Singh, the then Executive Engineer, Electricity Urban Distribution Division, Rambagh, Allahabad, so that the aforesaid officer in compliance of this order shall remain present on 27.06.2014.

Order Date :- 24.6.2014
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Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Sudhir Agarwal,J.

Hon'ble Suneet Kumar,J.

Shri N.K.Singh, the then Executive Engineer, Electricity Urban Distribution Division, Rambagh is present in person in the Court and an affidavit has been filed on his behalf by Shri R.S.Umrao which is taken on record.

Shri N.K.Singh was asked to submit his reply/explanation but he said that he has not to add anything further except what has been stated by him in the affidavit. On a specific query by the Court, whether Shri Singh wants to state anything other than what has been stated by him in affidavit, Shri Singh expressed 'sorry' and sought pardon for his conduct.

After some argument, Shri W.H Khan, learned Senior Counsel further states that he wants to raise some legal issues in the matter and it may be taken up on Monday i.e on 30.6.2014.

As prayed, put up this matter on 30.6.2014.

Shri N.K.Singh, the officer concerned shall continue to be present on that date.

Order Date :- 27.6.2014

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Respondent :- State Of U.P Thru Secy. And 3 Others

Counsel for Petitioner :- Subhash Gosain

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Sudhir Agarwal,J.

Hon'ble Suneet Kumar, J.

(Delivered by Hon'ble Sudhir Agarwal, J.)

1. This writ petition demonstrates as to how statutory authority can harass a person by simply passing unmindful illegal orders in flagrant violation of requirement of law and despite repeated orders passed by this Court, setting aside their orders and remanding the matter, they would not mend their ways and continue with similar illegalities so as to test the patience of the person concerned, either to surrender to the system or otherwise, break away. The facts demonstrating and fortifying the above impression gained by this Court, in brief, may be stated as under.

2. Petitioner has an electric connection in commercial category ie. governed by tariff LMV-2. His service connection number is 231383 and contracted electrical load is 4 KW. A vigilance team of U.P. Power Corporation Limited (hereinafter referred to as "UPPCL") made an inspection on 22.9.2012 and reported that by inserting a magnetic relay device in the meter box, petitioner has tampered the meter and, therefore, was guilty of committing theft of electrical energy. With respect to meter seals, checking team noted as under:

- (i) Meter box seal was not found.
- (2) Meter seal tampered.
- (3) Meter body seal broken.

(4) Magnetic relay device found in the meter.

3. Thereafter, it made following additional observation in the said report.

" मीटर बाक्स ताले मे बन्द पाया गया जिसे उपभोक्ता द्वारा कहने पर खोला गया । मौके पर मीटर की बाडी पर मैग्नेट रखा पाया गया तथा मीटर भी बन्द पाया गया मैग्नेट हटाने पर मीटर चलने लगा । उपभोक्ता द्वारा मीटर से छेड छाड करके मैग्नेटिक Relay device लगाकर स्वीकृत भार जुडे भार 4 के0 डबलू का उपभोग चोरी करते पाया गया ।"

"Meter box was found locked inside, which was opened at the instance of consumer. On the spot magnet was found kept on meter body and meter was also found inoperative. After removing the magnet, meter started working. By tampering the meter and inserting magnetic relay device, consumer was found committing theft of consumption of 4 KW electrical load."

4. The Executive Engineer, Electricity Urban Distribution Division, Ram Bagh, Allahabad (hereinafter referred to as assisting authority) issued a show cause notice dated 31.12.2012 stating that the petitioner has been found indulged in theft of electrical energy, which is an offence under Section 135 of Electricity Act 2003 and he may show cause, why allegations be not treated correct and assessment be made in accordance with U.P. Electricity Supply Code 2005 (hereinafter referred to as "the Code 2005"). An assessment bill of Rs. 1,60,046/- was appended to show cause notice dated 31.12.2012.

5. It appears that at the time of checking, vigilance team also

received a cheque of Rs. 40,000/- from the petitioner purported to be compounding charges under Section 152 of Act 2003 but the payment of aforesaid cheque was stopped by petitioner as a result whereof, the cheque stood dishonoured. Taking this factum into notice, assessing authority issued another notice dated 29.06.2013 stating that since his cheque of compounding has not been honoured, assessment will have to be made at double the rate and, therefore, proposed assessment against petitioner was made at Rs. 3,17,333/-. He was required to deposit the said amount or file his objection, if any, within 15 days.

6. Revised assessment notice dated 29.06.2013 was dispatched by the office of Respondent No.-3 on 20.09.2013 and it was delivered to Petitioner on 21.09.2013. This is evident from photocopy of envelop as also from Indian Post Track result, filed at page no. 40 of Paper Book. Petitioner submitted reply to show cause notice dated 29.06.2013 vide letter dated 03.10.2013.

7. Assessing authority, however without verifying from record as to when assessment notice dated 29.06.2013 was put in transmission by his office and presuming that notice must have been served long back, proceeded to make final assessment on 18.09.2013 itself, i.e. two days before the notice dated 29.06.2013 was put in transmission. Final assessment order dated 18.09.2013 required petitioner to pay assessed amount of Rs. 3,17,333/- within 15 days.

8. However, petitioner's meter was removed vide sealing certificate dated 19.08.2013 and a new meter was installed. The petitioner was also directed to present himself in the Test Lab on

24.08.2013 when removed meter would be tested thereat.

9. Petitioner challenged final assessment order dated 18.09.2013 in Writ Petition No. 61403 of 2013. It was allowed vide judgment dated 13.11.2013 and setting aside final assessment order dated 18.09.2013, this Court passed the following order.

“Petitioner's case is that he has filed a detailed objection dated 3.10.2013, annexure-5 to the writ petition, which has not been considered while finalising the assessment. Petitioner's case is that he has received the provisional assessment notice on 21.9.2013, hence he could not file the objection earlier.

Considering the facts of the case, we are of the view that the petitioner's objection be considered and the assessment against the petitioner finalising a fresh, the final assessment dated 18.9.2013 is set aside with a liberty to the Executive Engineer to pass a fresh order regarding finalising of assessment after considering the objection of the petitioner. The said decision shall be taken within a period of four weeks.”

10. Petitioner furnished a copy of judgment dated 13.11.2013 to assessing authority alongwith letter dated 21.11.2013. In the meantime since recovery proceedings were also initiated pursuant to final assessment order, the Collector and Tehsildar, Allahabad issued citation on 23.11.2013 compelling petitioner to pay Rs. 3,17,333/- despite the fact that final assessment order was already set aside by this Court. It caused the petitioner to come again in Writ Petition No. 14942 of 2014, challenging citation dated 23.11.2013. This Writ Petition was also allowed vide judgment dated 02.04.2014, which reads as under :-

“Learned counsel for the petitioner submits that by order dated 13.11.2013 passed by this Court in civil misc. writ petition no. 61403 of 2013, final assessment order dated 18.09.2013 was set aside giving liberty to the executive

engineer to pass a fresh order regarding finalisation of assessment after considering the objections of the petitioner.

Learned counsel for respondent nos. 2 and 3 has placed before us a letter dated 10th March, 2014 whereby in pursuance of the order passed by this Court on 13.11.2013, recovery proceedings have been kept in abeyance, which does not tantamount to the compliance of Court order dated 13.11.2013. The final assessment being set aside by order dated 13.11.2013, therefore, the recovery against the petitioner ought to have been withdrawn which is said to have been deferred only.

We are thus satisfied that the citation issued against the petitioner deserves to be set aside. However, liberty to finalize assessment is given which may be only by affording opportunity of hearing to the petitioner.

The impugned citation, therefore, is set aside and the writ petition stands allowed with no order as to cost.”

11. Sri N. K. Singh, holding office of assessing authority in May 2014 proceeded to pass a fresh order in purported compliance of this Court's judgment dated 13.11.2013 and 02.04.2014. He observed that assessment order dated 18.09.2013 was made final since petitioner's reply was not received by that date and petitioner's letter/representation received alongwith High Court's judgment does not accompany any such evidence which deserves to be considered and accordingly, rejected the same, upholding final assessment order dated 18.09.2013, observing that the same is in accordance with Rules and recovery must proceed accordingly.

12. It is this order which has been challenged in the present Writ Petition, contending that assessment order dated 18.09.2013 had already been set aside by this Court, meaning thereby, it ceased to exist in law, after passing judgment dated 13.11.2013. The assessing authority in impugned order has

treated earlier assessment dated 18.09.2013 alive and this is nothing but a sheer disobedience and non-compliance of this Court's order and even otherwise, impugned order does not amount to a fresh and reasoned assessment order and therefore, is patently illegal.

13. Prima facie we find substance in what was contended by learned counsel for petitioner which could not be shown incorrect by learned counsel appearing for respondents. We took a view that assessing authority Sri N. K. Singh has committed contempt of this Court and therefore, vide order dated 24.06.2014 we called upon him to appear before this Court and explain why he could dare to defy this Court's judgments dated 13.11.2013 and 02.04.2014. Sri N. K. Singh, Executive Engineer was also impleaded as respondent no.5.

14. Pursuant to our order dated 24.06.2014 respondent no.5 put in appearance and filed his affidavit as well as supplementary affidavit. In para 8 of the affidavit, he admits that revised notice and provisional assessment order was issued by him on 29.6.2013 but there appears to be some lapse on the part of the office in sending revised assessment dated 29.6.2013. Para 8 of the affidavit reads as under:

" The deponent revised the provisional assessment on 29.6.2013. It appears that there was lapse on the part of the office in sending the revised assessment dated 29.6.2013."

15. He further said that final assessment dated 18.9.2013 was passed by him on the assumption that petitioner has not submitted objection to the revised assessment notice dated 29.06.2013. In para 9 of the affidavit he has admitted that

vide order dated 5.5.2014, he reaffirmed order dated 18.9.2013 and did not pass detailed order believing that the judgment dated 13.11.2013 stood complied with by him. Para 9 of the affidavit reads as under :-

" The deponent reaffirmed the order dated 18.9.2013. In view of these facts, the deponent did not pass the detailed order and bona fide believed that the order of this Hon'ble Court dated 13.11.2013 has been complied with"

16. In para 10 of the affidavit he further said that one opportunity may be granted to him to pass fresh reasoned order on the representation of petitioner, as directed vide Court's judgment dated 13.11.2013. In para 3 of supplementary affidavit he has again said that he passed order dated 5.5.2014, *bona fide*, observing that the petitioner did not adduce any evidence to discredit checking report dated 22.9.2012, the order dated 18.09.2013 was rightly passed and did not require any change. He also admits that the order dated 5.5.2014 is not a reasoned order, dealing with all the points raised in 19 pages representation of the petitioner. The relevant part thereof reads as under:-

" It is correct that the order dated 5.5.2014 is not a detailed order dealing with on the points raised in 19 pages representation of the petitioner dated 3.10.2013."

17. Suffice it to mention here that the concerned authority neither recalled the impugned dated 5.5.2014 nor complied with the orders passed by this Court and flouted the same. It appears from the record that respondent No.5 did not read orders dated 13.11.2013 and 02.04.2014. Initially, we thought to draw contempt proceedings against respondent No.5 but on an undertaking given by him to the effect that since for his

fault, the petitioner has repeatedly been harassed in filing three writ petitions before this Court, he will make compliance of this Court's order strictly, by passing a reasoned order, in accordance with law, laid down by this Court in various cases, including **Ashok Kumar Vs. State of U.P and other, 2008(6) ADJ 660** and that he is ready to compensate the petitioner as may be directed by this Court, we declined initiating contempt proceedings.

18. From the above, it is clear that though final assessment order dated 18.09.2013 was set aside by the Court, as a result whereof it became nonest in the eyes of law but without understanding or realising or appreciating the consequence, respondent no.5 believed that the said assessment order dated 18.09.2013 is still subsisting and he has only to re-check whether any further alteration is required or not. Either he did not read the order carefully with open mind or did not understand its clear and unambiguous meaning. This is really unfortunate and shameful that an officer of the rank of Executive Engineer could not understand a clear and simple order of this Court, whereby the order under challenge was set aside and the competent authority, i.e. assessing authority was required to pass a fresh reasoned order, after considering petitioner's reply. It also appears to us that instead of considering petitioner's reply dated 03.10.2013, respondent no.5 only look into his letter dated 21.11.2013 which was submitted by petitioner communicating this Court's judgment to him and thereafter, he passed impugned order. Though disobedience and noncompliance is fully proved and admitted also but since respondent no.5 has tendered unconditional apology, we drop proceedings for initiating contempt against

him but place on record our serious concern and displeasure to his conduct and attitude, besides showing doubt to his functional capacity and efficiency.

19. Since impugned order is apparently and evidently does not satisfy requirements as directed by this Court vide judgment dated 13.11.2013, it is non-speaking, unreasoned, founded on nonest order, therefore, it can not sustain. The Writ Petition has to be allowed.

20. In the result, the Writ Petition is allowed. Since petitioner has repeatedly been harassed due to unmindful orders passed by assessing authority, in our view, here is a case which renders petitioner entitled and justify exemplary cost which we quantify to Rs. 20,000/- against respondent no.5, who shall pay the same personally within a period of one month.

Order Dated 30.06.2014

G.S./Akn